

Court No. - 32

Case :- WRIT - C No. - 17815 of 2022

Petitioner :- Abdul Ali @ Abdul Navi

Respondent :- The Managing Director Paschimanchal Vidyut
Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Rajesh Yadav

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner prays for and is granted permission to make correction in the description of respondent nos.1 and 2 within the course of the day.

As prayed, ten days time is granted to seek instructions from the petitioner.

Let this matter be posted on 11th July, 2022 as fresh.

Sri Mukesh Kumar Singh, learned Advocate has received notice on behalf of the respondents. His name be shown in the cause list.

Order Date :- 28.6.2022

Bhaskar

Court No. - 3

Case :- WRIT - C No. - 17815 of 2022

Petitioner :- Abdul Ali @ Abdul Navi

Respondent :- The Managing Director Paschimanchal Vidyut Vitran Nigam Limited And 2 Others

Counsel for Petitioner :- Rakesh Kumar Mishra

Counsel for Respondent :- Rajesh Yadav,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and learned counsel for the respondents.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned notice dated 22.10.2021 issued by the respondent no.2 (Annexure No.3).

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent authorities not to adopt any coercive measure against petitioner in pursuance to impugned notice dated 22.10.2021 issued by the respondent no.2 (Annexure No.3)".

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

T.S.